

SENATE BILL 746

By Yager

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 6, relative to student promotion.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-3115(a)(2)(A), is amended by adding the following as a new subdivision:

(vii) A majority of the categories of participants in a conference convened by the student's LEA or public charter school pursuant to this subdivision (a)(2)(A)(vii) recommends that the student be promoted. An LEA or public charter school shall convene a conference to determine whether a student who achieved a performance level rating of "approaching" on the ELA portion of the student's most recent TCAP test must be promoted to fourth grade or retained in third grade if the student has earned an overall letter grade of A or B in the student's third grade ELA class, and the student's parent or guardian has elected for their student not to attend a learning loss bridge camp for purposes of subdivision (a)(2)(A)(iv). The conference must be attended by the following categories of participants: the student's parent or guardian, the student's ELA teacher, and the student's school principal. The recommendation made by a majority of the categories of participants in the conference determines whether the student must be promoted to the fourth grade or retained in the third grade; provided, that a student must not be retained in the third grade more than once. A student who is promoted to the fourth grade pursuant to this subdivision (a)(2)(A)(vii) must be assigned a tutor to provide tutoring services to the student for the entirety of the student's fourth-grade year based on tutoring requirements established by the department.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.